

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge William J. Martínez

Courtroom Deputy: Deborah Hansen
Court Reporter: Gwen Daniel

Date: January 14, 2013

Civil Case No. 09-cv-02434-WJM-MJW

Counsel:

CINDY H. SANDOVAL,

Plaintiff,

Elwyn F. Schaefer
Sara A. Green

v.

ANNA MARTINEZ-BARNISH,

Defendant.

Juan G. Villasenor
Jamie Mendelson

COURTROOM MINUTES

JURY TRIAL - DAY ONE

08:10 a.m. Court in Session

Also present: Reesha Trznadel, Esq. (United States Department of Energy)

Court's comments

Mr. Schaefer requests Rule 615 be invoked.

ORDERED: Rule 615 shall be INVOKED.

08:20 Court in Recess

08:32 Court in Session

08:32 Jury panel present.

Court's opening remarks to the jury panel

Jury panel sworn voir dire.

08:44 Voir dire commences

09:14 Voir Dire (by Mr. Schaefer)

09:30 Voir Dire (by Mr. Villasenor)

09:38 Bench conference

09:42 Bench conference

09:45 Voir dire completed.

Challenges for Cause:

- 1) 100229357
- 2) 100213530

CHALLENGES FOR Plaintiff:

- 1) 100219962
- 2) 100233619
- 3) 100222475

CHALLENGES FOR DEFENDANT:

- 1) 100205877
- 2) 100231208
- 3) 100219531

09:46 Jury sworn to try case:

- 1) 100238693
- 2) 100221009
- 3) 100233015
- 4) 100209870
- 5) 100225830
- 6) 100211038
- 7) 100209745
- 8) 100200802

Court's preliminary instructions to jury

10:00 Court in Recess

10:28 Court in Session - Jury present

10:28 Opening Statement (by Mr. Schaefer)

10:37 Opening Statement (by Mr. Villasenor)

PLAINTIFF'S FIRST WITNESS CINDY H. SANDOVAL

10:49 Direct (by Mr. Schaefer)

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
4, 5, 7, 11

11:11 Cross (by Mr. Villasenor)

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
(objection overruled) C

11:27 Redirect

11:28 - 11:30 Bench Conference

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
18

PLAINTIFF'S SECOND WITNESS CHRISTOPHER POWERS

EXHIBIT 18 (CD) played for jury

11:38 Court in Recess

01:18 Court in Session - jury present

PLAINTIFF'S THIRD WITNESS SCOTT ROGERS (by videoconference)

01:18 Direct (by Mr. Schaefer)

01:30 Cross (by Mr. Villasenor)

01:31 Redirect

PLAINTIFF'S FOURTH WITNESS SHIRLEY CONTRERAS

01:36 Direct (by Mr. Schaefer)

01:47 Cross (by Ms. Ms. Mendelson)

01:55 Redirect

01:58 - 02:00 Bench conference

02:00 Plaintiff Rests.

02:01 Jury excused from courtroom

02:02 Defendant's Rule 50 motion for judgment as a matter of law (by Ms. Mendelson)

02:16 Plaintiff's Response (by Mr. Schaefer)

02:19 Reply (by Ms. Mendelson)

ORDERED: Defendant's oral Rule 50 motion is TAKEN UNDER ADVISEMENT.

02:21 Plaintiff's Rule 50 motion as to liability (by Mr. Schaefer)

ORDERED: Plaintiff's oral Rule 50 motion as to liability is DENIED.

02:22 Court in Recess

02:47 Court in Session - jury present

DEFENDANT'S FIRST WITNESS ANNA MARTINEZ-BARNISH

02:48 Direct (by Ms. Mendelson)

03:27 Cross (by Mr. Schaefer)

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
1, 6

03:40 Jury excused from the courtroom.

03:40 Argument (by Mr. Schaefer)

Mr. Schaefer offers Exhibit No. 17

03:44 Argument (by Ms. Mendelson)

04:02 Jury present

DEFENDANT'S FIRST WITNESS ANNA MARTINEZ-BARNISH

04:02 Cross continued (by Mr. Schaefer)

Plaintiff offers Exhibit No. 17

Defendant objects.

04:04 Voir dire (by Ms. Mendelson)

04:04 Voir dire (by Mr. Schaefer)

EXHIBITS IDENTIFIED, OFFERED AND RECEIVED:
(objection overruled) 17

04:08 The Court reads limiting instruction to the jury.

DEFENDANT'S FIRST WITNESS ANNA MARTINEZ-BARNISH

04:10 Redirect (by Ms. Mendelson)

04:11 p.m. Court in Recess
Trial continued
Time: Five hours and 16 minutes